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HIGH COURT OF JUDICATURE AT ALLAHABAD, LUCKNOW BENCH

Chief Justice's Court

Case :- MISC. BENCH No. - 9588 of 2014

Petitioner :- Smt. Sushama Chowdhary

Respondent :- U.P. Power Corporation Ltd. Thru. Chairman & 4 Ors.

Counsel for Petitioner :- Gyaneshwar Prasad Pandey, Pankaj Kishor

Counsel for Respondent :- Prashant Arora

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice

Hon'ble Devendra Kumar Upadhyaya, J.

The petitioner is presently residing at 567/160, Anand Nagar, Alambagh, Lucknow. The fifth respondent is the brother of the petitioner. There appears to be a family dispute between the petitioner and the fifth respondent. The petitioner has instituted a suit for a permanent injunction before the Civil Judge (Senior Division), Malihabad, Lucknow (Regular Suit No.228 of 2014), which is pending.

It appears from the record that the fifth respondent applied to the third respondent, the Executive Engineer, stating that he was not utilizing the electricity connection installed at the residential premises noted above and sought disconnection of electricity. The electricity connection was disconnected in the month of May 2014 at the peak of the summer. Thereupon, the petitioner moved an application to the third respondent on 9 June 2014, for the grant of an electricity connection in her name. A writ petition before this Court (Writ Petition No.5452 (MB) of 2014) was disposed of on 30 June 2014, with a direction to the Executive Engineer, Madhyanchal Electricity Distribution Corporation Ltd., to examine the petitioner's application for an electricity connection and to decide it in accordance with law, after furnishing an opportunity of being heard to the petitioner and to the fifth respondent. In pursuance thereof, the Executive Engineer has issued the impugned order dated 2 August 2014, rejecting the request for grant of an electricity connection to the petitioner.

Section 43 (1) of the Electricity Act, 2003 provides that save and otherwise provided in the Act, every distribution licensee shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises within one month after receipt of an application requiring such supply. Section 43 (1) of the Act of 2003 casts an affirmative obligation on the distribution licensee to supply electricity on an application being moved by the owner or occupier. A corresponding entitlement or right is conferred by the statute on the owner or occupier to require a supply of electricity. This legal position is not in doubt. In *Chandu Khamaru v. Smt. Nayan Malik*², the Supreme Court, while interpreting the provisions of Section 43 (1) of the Act of 2003, observed as follows:

"Sub-section (1) of Section 43 provides that every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply. These provisions in the Electricity Act, 2003 make it amply clear that a distribution licensee has a statutory duty to supply electricity to an owner or occupier of any premises located in the area of supply of electricity of the distribution licensee, if such owner or occupier of the premises applies for it, and correspondingly every owner or occupier of any premises has a statutory right to apply for and obtain such electric supply from the distribution licensee."

Again, in a subsequent part of the aforesaid decision, the Supreme Court emphasized the statutory right of an occupier and the corresponding statutory obligation on the distribution licensee to supply electricity. The Supreme Court observed as under:

"...The appellant has a statutory right to apply for and obtain supply of electricity from the distribution licensee and the distribution licensee has a corresponding statutory obligation to supply electricity to the appellant."

We find merit in the contention of the petitioner that the impugned order dated 2 August 2014 contains no reason for the denial of electric supply, save and except for making a reference to the provisions of Clause 4.4 of the Electricity Supply Code-2005. Clause 4.4 of the Code-2005 is in aid of the statutory duty cast by Section 43 of the Act of 2003.

As a matter of fact, an Indemnity Bond, a proforma of which is contained in Annexure 4.2 of the Code-2005, deals with a situation where an occupier of the premises applies for the grant of an electricity connection, but is unable to produce the consent of the owner. Obviously, in a situation, where a dispute is between the owner and occupier (in the present case, the dispute is between members of a family), a provision has been made for furnishing an Indemnity Bond. The record would, in fact, indicate that on 21 July 2014, the petitioner had furnished an Indemnity Bond, describing herself as an occupier of the premises and said that she was unable to obtain the consent of the owner in view of the pendency of the litigation before the Court. Despite this, the Executive Engineer has acted in breach of the statutory obligation, which is cast on a distribution licensee to provide supply of electricity. The impugned order reveals a total non-application of mind and an unawareness of

the obligation, which is cast by Section 43 of the Act of 2003 on the distribution licensee.

We, accordingly, allow the petition by quashing and setting aside the impugned order dated 2 August 2014 passed by the Executive Engineer-the third respondent. We direct that the petitioner shall, if so required, furnish a fresh Indemnity Bond to the third respondent, within a week from today. The third respondent shall take all necessary steps to grant the application submitted by the petitioner for an electricity connection, subject to compliance with all other requirements. However, the third respondent shall not insist on the consent of the owner of the premises. Subject to the petitioner furnishing an Indemnity Bond within a week from today, we direct the third respondent to take all necessary steps to provide an electricity connection to the petitioner no later than within a period of ten days thereafter.

The petition is, accordingly, disposed of. There shall be no order as to costs.

Order Date :- 24.9.2014

RKK/-

(D.K. Upadhyaya, J) (Dr. D.Y. Chandrachud, CJ)

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